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Case Number: 25SMCV01038 Hearing Date: July 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

KOUROSH MAGHEREFETEH,

Plaintiff,

v.

MARKELLA THANOU, et al.,

Defendants.

Case No.:

25SMCV01038

Hearing Date: 07/01//26

Trial Date:

None

[TENTATIVE] RULING RE:

Defendant's Motion for Reconsideration of the Court's 5/21/26 Order

Denying Defendant's "Motion for Relief from Default and Vacate Default and Order of 12/3/25"

Background

This is a breach of contract case arising from a failure to pay rent. Plaintiff Kouroush Magherefete (Plaintiff) entered a lease for residential property with Defendants Markella Thanou (Thanou) and Vasileios Palaioroutas (Palaioroutas). Plaintiff alleges the defendants failed to pay rent when due and damaged the property before surrendering possession.

On June 1, 2026, Palaioroutas filed the instant motion for reconsideration of the Court's ruling on May 21, 2026, denying a motion that the defendant filed on April 23, 2026, seeking relief from default and vacation of prior court order.

On June 16, 2026, Plaintiff filed an opposition to the motion for reconsideration.

As of June 29, 2026, no reply in support of the motion for reconsideration has been filed.

Motion for Reconsideration Standard

Under Code of Civil Procedure section 1008 ("Section 1008"):

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (Code Civ. Proc., § 1008, subd. (a).)

"A motion made in accordance with section 1008 must include reference to new or different facts, circumstances, or law before the earlier order may be reconsidered." (In re Marriage of Oropallo (1998) 68 Cal.App.4th 997, 1002.) "[A] party must provide a satisfactory explanation for failing to offer the evidence in the first instance." (In re Marriage of Herr (2009) 174 Cal.App.4th 1463, 1468 [internal citations omitted].)

“According to the plain language of the statute, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon ‘new or different facts, circumstances, or law.’” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.)

Analysis

Addressing the merits of the motion, the Court sets forth below a summary of the procedural history of this case.

Relevant Procedural History

The party moving for reconsideration, Defendant Palaioroutas, was initially defaulted on July 21, 2025.

Palaioroutas then filed a motion to quash service of summons on September 29, 2025, arguing that he was never properly served with any court papers, including the request for entry of default.

On October 24, 2025, the Court held a hearing on the motion to quash and stated that it had initially intended to hold an evidentiary hearing given the parties’ conflicting testimony. However, because Plaintiff failed to appear at the hearing on Palaioroutas’s motion to quash, the Court entered a final order granting the motion to quash (the “October 24 Ruling”). Although the ruling did not state whether the default against Palaioroutas had been vacated, the Register of Actions reflects that the default was vacated on the day of the hearing. Indeed, a default entered due to lack of service was void. (See Ellard v.

Conway

(2001) 94 Cal.App.4th 540, 544 [“[A] default judgment [or default] entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation]”].)

On November 4, 2025, Plaintiff filed a motion to set aside the October 24 Ruling, arguing that he did not appear at the hearing on October 24, 2025, because he was never served with the moving papers for the motion to quash.

On December 1, 2025, the Court held the hearing on Plaintiff's motion to set aside the October 24 Ruling. Only Plaintiff appeared at that hearing. The Court granted the motion, including Plaintiff's request to place the evidentiary hearing back on the calendar (the "December 1 Ruling"). The Court stated: "Evidentiary Hearing 402 EC is scheduled for 12/03/2025 at 8:30 AM in Department 205 at Beverly Hills Courthouse."

The December 1 Ruling ordered Plaintiff to give notice of the ruling "via mail," a fact that is relevant, as later shown in this ruling.

On December 3, 2025, the Court held the evidentiary hearing on Palaioroutas's motion to quash, but because the defendant failed to appear, the Court denied the motion (the "December 3 Ruling"). However, the December 3 Ruling did not state whether the default entered on July 21, 2025, was still in effect.

On December 10, 2025, Palaioroutas filed an Answer to the Complaint.

On March 9, 2026, the Court issued a non-appearance Court Order Re Setting of Order to Show Cause for Entry of Default Judgment. The Court stated that defendants remained in default status. Accordingly, the Court set an "Order to Show Cause Re: Entry of Default Judgment ... for 07/01/2026 at 8:30 AM in Department 205 at Beverly Hills Courthouse." The Court ordered the clerk to give notice to Plaintiff.

On April 23, 2026, Palaioroutas filed a "Motion for Relief from Default and Vacate Default and Order of 12/3/25" (the "April 23 Motion"), arguing for an order "vacat[ing] the default of July 21, 2025, on grounds that service did not occur, and to vacate the ruling of 12/3/25 denying the motion to quash on grounds that Defendant was not properly served [with the notice of the hearing] and thereby did not receive notice of the hearing to attend [on December 3, 2025]." (April 23 Motion, p. 19:19-23.)

On May 12, 2026, Plaintiff filed an opposition to the April 23 Motion.

According to the papers submitted in support of that opposition, Plaintiff had served Palaioroutas with notice of the December 1 Ruling "via email" instead of "via mail" as ordered by the Court. (See

Opposition filed May 12, 2026, Declaration of Dennis P. Block, ¶ 7(i); Exh. 12 – a copy of the Notice of Ruling, p. 2 [showing that a person named HG Long served the notice of the December 1 Ruling on defendants at instead of via mail].)

On May 21, 2026, the Court held the hearing on Palaioroutas's April 23 Motion and issued a Minute Order stating that "[t]he motion is denied for the reasons set forth in the Opposition filed by Plaintiff" (the "May 21 Ruling").

On June 1, 2026, Palaioroutas filed the instant motion for reconsideration of the May 21 Ruling, arguing that "the Court erroneously concluded that the Answer [the defendant had filed on December 10, 2025] was precluded by a default, and new facts and circumstances therefore exist to warrant reconsideration." (Motion for Reconsideration, p. 1:20-22.)

On June 2, 2026, Plaintiff filed a default judgment packet against Defendants Palaioroutas and Thanou.

On June 16, 2026, Plaintiff filed an opposition to the instant motion for reconsideration.

On June 17, 2026, Palaioroutas filed an opposition to the Order to Show Cause Re Entry of Default Judgment, which is set for hearing on the same day as the motion on July 1, 2026. That opposition argues that Defendant Thanou passed away on December 8, 2024, three months before this lawsuit was initiated in 2025, service of summons on Palaioroutas was improper, and that Palaioroutas is in the process of securing formal legal counsel.

Analysis

Palaioroutas argues that, although the Court denied his April 23 Motion for the reasons set forth in Plaintiff's opposition, the opposition "did not contend that the Answer was precluded by the prior default ...," and the Register of Actions shows that the default entered on July 21, 2025, was vacated. (See Motion for Reconsideration, Palaioroutas Decl., pp. 3-4 [providing a printout of the Register of Actions, which shows that the default was vacated on October 24, 2025, when the Court granted the defendant's motion to set aside the default].) According to the defendant, "Plaintiff misled the court into thinking that the default was still in place, but knew that it wasn't. That is why [the defendant's] motion to

quash was allowed to be filed after July 21, 2025.” (Id. at p. 3:9-11.) Therefore, the defendant asks the Court to vacate the default and allow him to resume his defense. (Id. at p. 2:10-11.)

In opposition, Plaintiff

argues, among other things, that there are no new circumstances that warrant reconsideration because the Register of Actions was available to the defendant before the hearing on May 21, 2026, and could, therefore, have been presented with his original motion. (Opposition, p. 2:12-14.) “Code of Civil Procedure section 1008 does not permit a disappointed litigant to withhold or overlook available court-record information, then use that same information as a basis to relitigate an adverse ruling.” (Id. at p. 2:15-17.)

Plaintiff also argues: “The

procedural history had been litigated repeatedly: default was entered; Defendant moved to quash; Defendant failed to appear; Defendant refiled the motion to quash; the October 24 order granting quash was vacated; the motion to quash was denied on December 3; Defendant filed an Answer while default remained in place; and the Court later noted that Defendants remained in default status. Defendant cannot claim surprise from the Court’s consideration of the very procedural issue that his own motion required the Court to address.” (Opposition, pp. 8:12-9:2.)

Lastly,

Plaintiff argues that even assuming that the Court were to grant reconsideration, Defendant has still not established grounds for changing the Court’s May 21 Ruling denying his “Motion for Relief from Default and Vacate Default and Order of 12/3/25.” (Opposition, p. 5:5-6.)

Even if the Court were to agree

with Plaintiff that Palaoroutas has not presented “new or different facts, circumstances, or law” warranting reconsideration of the May 21 Ruling under Section 1008, the Court can, on its own authority and upon realizing an error in the prior ruling, choose to reconsider the May 21 Ruling. (See *Boschetti v. Pacific Bay Investments Inc.* (2019) 32 Cal.App.5th 1059, 1070 [“Our Supreme Court has made clear that, while Code of Civil Procedure section 1008 prohibits a party from making a renewed motion not based on new facts or law, it does “not limit a court’s ability to reconsider its previous interim orders on its own motion, as long as it gives the parties notice that it may do so and a reasonable opportunity to litigate the question.” (*Le Francois v. Goel*

(2005) 35 Cal.4th 1094, 1096–1097, 29 Cal.Rptr.3d 249, 112 P.3d 636 (Le Francois).) The court explained, ‘We cannot prevent a party from communicating the view to a court that it should reconsider a prior ruling [I]t should not matter whether the “judge has an unprovoked flash of understanding in the middle of the night” [citation] or acts in response to a party’s suggestion. If a court believes one of its prior interim orders was erroneous, it should be able to correct that error no matter how it came to acquire that belief.’ (Id. at p. 1108, 29 Cal.Rptr.3d 249, 112 P.3d 636; see *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 34, 207 Cal.Rptr.3d 350 [‘Trial courts always have discretion to revisit interim orders in service of the paramount goal of fair and accurate decisionmaking’]; In re Marriage of Barthold (2008) 158 Cal.App.4th 1301, 1308, 70 Cal.Rptr.3d 691 [‘Le Francois simply requires that the trial court reconsider a prior ruling based on its own realization that the ruling was erroneous, and not based upon a determination that [an improper] motion to reconsider should itself be granted on the merits.’]; accord, *Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 73–74, 103 Cal.Rptr.3d 906”).)

Here, the Court grants the request for reconsideration of the May 21 Ruling based on the following findings. In its December 1 Ruling, the Court ordered Plaintiff to give Palaoroutas notice of the evidentiary hearing on December 3, 2025, “via mail.” In the underlying motion at issue (i.e., the “Motion for Relief from Default and Vacate Default and Order of 12/3/25,” that the defendant filed on April 23, 2026), the defendant argued that he did not give consent for his “email to be used to serve [him] papers. I do not look at my email very often, which is the primary reason for not accepting emailed notice. Alleged services to me by my email were invalid, including the notice of the December 3, 2025 hearing, which is why I did not contest it.” (April 23 Motion, p. 5:5-8.) Although electronic service would have been a faster form service for an evidentiary hearing taking place a few days later, the Court finds that the defendant was nonetheless prejudiced by Plaintiff’s failure to serve the notice of December 1 Ruling through mail as ordered by the Court. The ruling at issue on this motion for reconsideration (i.e. the May 21 Ruling) denied the defendant’s April 23 Motion for the same reasons presented in Plaintiff’s opposition to that motion. However, because Plaintiff’s opposition failed to take into account the fact that Plaintiff failed to serve the defendant in the manner ordered by the Court and stated by the defendant, reconsideration of the Court’s May 21 Ruling denying the defendant’s “Motion for Relief from Default and Vacate Default and

Order of 12/3/25" is warranted.

For the reasons discussed above, the Court grants the defendant's motion for reconsideration, vacates its May 21 Ruling, and also vacates the December 3 Ruling denying the defendant's motion to quash. The Court shall place the defendant's motion to quash back on the calendar and give the parties one last opportunity to appear at the evidentiary hearing as ordered below.

Conclusion

Based on the foregoing, the Motion for Reconsideration is GRANTED. The orders entered on December 3, 2025, and May 21, 2026, are vacated.

The Court places the Motion to Quash Service of Summons filed by Defendant Vasileios Palaioroutas on 09/29/2025 back on active calendar for an evidentiary hearing on July 31, 2026 at 8:30 a.m., Dept. 205, Beverly Hills Courthouse. All parties and relevant witnesses, including process servers, must attend the evidentiary hearing. Defendant's failure to appear at the evidentiary hearing will automatically result in a denial of his motion to quash, striking of the Answer filed on December 10, 2025, and default reinstated. Plaintiff's failure to appear will result in the motion to quash being granted, the default entered on July 21, 2025, vacated, and the Answer filed on December 10, 2025, deemed filed. If all parties appear at the evidentiary hearing, the Court shall proceed with an evidentiary hearing regarding service of summons on the defendant. If the Court finds, after the evidentiary hearing, that the defendant has established grounds for quashing service, the Court shall enter an order granting the motion to quash, vacating the entry of default, and deeming his Answer filed as of the date of the evidentiary hearing. Conversely, if the Court finds that the defendant has failed to establish grounds for granting the motion to quash, the Court shall deny the motion, reinstate the entry of default entered on July 21, 2025, and strike the Answer that was filed on December 10, 2025.

The Order to Show Cause Re: Entry of Default Judgment is taken off calendar.

Clerk to give notice.

Dated: July 1, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court